

An Act

ENROLLED HOUSE
BILL NO. 3834

By: May and Pae of the House

and

Frix of the Senate

An Act relating to ibogaine clinical trials; creating the Oklahoma Breakthrough Therapy Act; providing short title; defining terms; directing the State Department of Health to enter into certain contracts subject to specified conditions; establishing requirements for drug developers; providing contractual terms; providing for intellectual property rights; requiring submission of certain reports; creating the Ibogaine Development Revolving Fund; specifying type of fund and sources of monies; providing for budgeting and expenditure of monies for specified purpose; granting certain professional immunity to medical professionals; providing for codification; and providing an effective date.

SUBJECT: Ibogaine clinical trials

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-806.1 of Title 63, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Breakthrough Therapy Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-806.2 of Title 63, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Department" means the State Department of Health;

2. "Drug developer" means a public-private partnership, for-profit, nonprofit, or public benefits corporation engaged in drug development and manufacturing that has established an ibogaine drug development agreement with at least one additional state with a plan to conduct drug development clinical trials to obtain United States Food and Drug Administration approval for the use of ibogaine; and

3. "Ibogaine" means ibogaine and ibogaine-based therapeutics, including ibogaine analogs.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-806.3 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. The State Department of Health shall, subject to the availability of funds and in accordance with the provisions of this act, contract with a drug developer to support multistate drug development clinical trials to obtain United States Food and Drug Administration approval for the use of ibogaine.

B. Before the State Department of Health may contract with the drug developer, the drug developer shall provide to the Department:

1. A detailed description of the drug developer's strategy for obtaining approval for ibogaine from the United States Food and Drug Administration through sanctioned drug development clinical trials, including a detailed clinical trial design, a description of the composition of the consortium's drug development clinical trial team and the expertise of the team members, its plan to submit an investigational new drug application, if it has not already done so, and to seek a breakthrough therapy designation under 21 U.S.C., Section 356 to expedite the trials;

2. Protocols for clinical trial participant recruitment, patient screening criteria administration, aftercare, and post-acute treatment support;

3. Certification of an existing ibogaine drug development agreement with one or more other states or state-sponsored consortia; and

4. Financial disclosures sufficient to verify the drug developer is prepared to meet its full obligations under this section.

C. Before the Department may contract with the drug developer, the Department shall negotiate a contract requiring the drug developer to substantially agree to the following:

1. To match the state's investment in drug development clinical trials with ibogaine with an equal amount of additional funding and to devote this total amount to drug development clinical trials conducted within this state. These trials shall, to the maximum extent possible, use in-state clinicians, facilities, and study participants;

2. To provide reporting as specified under Section 4 of this act;

3. To establish a plan to ensure broad and accessible ibogaine treatment access to patients within the state following approval of ibogaine by the United States Food and Drug Administration by diverse means including, but not limited to:

- a. providing priority access to ibogaine treatment to residents of the state,
- b. seeking third-party payor approval for ibogaine treatment within the state,
- c. developing means of access to ibogaine treatment within the state for uninsured and low-income individuals, and
- d. training and credentialing medical providers within the state to administer ibogaine treatment; and

4. To provide a plan to recognize the state's economic interest in the intellectual property generated over the course of the multistate drug development clinical trials with ibogaine, consisting of the share of the proceeds from such intellectual property that is proportional to the state's contribution to the total cost of the multistate drug development trials, and to remit the state's share of those proceeds to the Department at agreed-upon intervals during the period for which the drug development clinical trials are funded and during any following period of

commercialization. The Department shall deposit all remitted proceeds in the Ibogaine Development Revolving Fund created in Section 5 of this act.

D. In negotiating a contract with the drug developer, the Department may agree to additional terms and make reasonable deviations from the requirements of this section if the resulting contract is fair and creates at least substantially equivalent value for the state.

E. For purposes of this section, intellectual property rights and other economic rights accruing to the State of Oklahoma arising from multistate drug development clinical trials with ibogaine shall include any and all of the following as related to these trials:

1. Intellectual property, technology, and inventions;
2. Patents, trademarks, and licenses;
3. Proprietary and confidential information;
4. Trade secrets, data, and databases;
5. Tools, methods, and processes;
6. Treatment models or techniques;
7. Administration protocols; and
8. Works of authorship.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-806.4 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. The drug developer shall quarterly prepare and electronically submit to the State Department of Health:

1. A report on the progress of the multistate drug development clinical trials with ibogaine conducted pursuant to this act; and
2. A financial status report, including information to verify expenditures of state funds and required matching funds.

B. The Department shall electronically submit a report to the Governor, the President Pro Tempore of the Senate, and the Speaker of the House of Representatives on the progress of the drug development clinical trials and its related financial status by December 1 of each year until the clinical trials are concluded.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-806.5 of Title 63, unless there is created a duplication in numbering, reads as follows:

There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Ibogaine Development Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department from:

1. Remittance of the state share of proceeds from intellectual property generated over the course of the multistate drug development clinical trials as provided in paragraph 4 of subsection C of Section 3 of this act; and

2. Any other source when provided for the purpose described in this section including, but not limited to:

- a. legislative appropriations,
- b. private gifts and donations, and
- c. public and private grants.

All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department for the purpose of supporting programs or research benefiting at-risk populations that suffer from conditions treatable with ibogaine including, but not limited to, traumatic brain injury, opioid use disorder, co-occurring substance use disorder, and other neurological or mental health disorders. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-806.6 of Title 63, unless there is created a duplication in numbering, reads as follows:

Medical professionals licensed by the State of Oklahoma shall not be subject to professional disciplinary action solely for recommending participation in clinical trials of ibogaine.

SECTION 7. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____